

**El Paso County
Delia Briones
County Clerk**

Instrument Number: 00000000106

Ch.Saenz

Recorded On: 3/12/2026 3:16:37 PM

Number of Pages: 1

Examined and Charged as Follows:

Total Recording: 12.00

*****THIS PAGE IS PART OF THE INSTRUMENT*****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.

File Information

Document Number 00000000106
Receipt Number 1963265
Recorded Date/Time: 3/12/2026 3:16:37 PM
Station: CCH01-CCK109



State of Texas
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon,
and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones
County Clerk
El Paso County, TX

NOTICE OF TRUSTEE'S SALE

Trustee: Briana Cooper

Trustee's Address: PO Box 65305, Lubbock, TX 79464, E: brian@texascivilpractice.com

Borrower & Grantor: AXE/CAP, INC.

Lender: CHPACE HOLDINGS, LLC

Notes Secured by Deeds of Trust: Amended Promissory Note dated May 29, 2025, in the original principal amount of \$262,093.91, which modified and renewed the original note from October 4, 2023; and that Second Promissory Note dated May 30, 2025, in the original principal amount of \$19,747.62; (the term "Note" herein shall collectively mean the Notes identified herein and as so modified, renewed, and/or extended).

Deeds of Trust: Correction Deed of Trust dated May 8, 2024, Doc # 20240032817 of the real property records of El Paso County, Texas, being a correction of the original Deed of Trust was filed on October 12, 2023, as Document # 20230075320 recorded in of the real property records of El Paso County, Texas; and Second Lien Deed of Trust dated May 30, 2025, Doc # 20250044246 recorded in of the real property records of El Paso County, Texas; (the term "Deed of Trust" herein shall mean collectively the Deeds of Trust identified herein and as so modified, renewed, and/or extended).

Property: Lots 37, 38, and 39, Block 5, of MAP OF SAMBRANO SUBURB, an Addition to the City of El Paso, El Paso County, Texas, according to the Plat or Map thereof recorded in Volume 2, Page 2, Plat Records of El Paso County, Texas, together with all improvements and buildings thereon.

Municipally known as: **225 N Seville Dr, El Paso, Texas 79905**

Default has occurred in the payment of said Notes and the same is now wholly due, and the Lender, owner and holder of the Notes and Deed of Trust liens, has requested to sell said property according to the terms of the deed of trust and applicable law. NOW, THEREFORE, NOTICE IS HEREBY GIVEN of the following:

Date, Time, and Place of Sale:

Date: April 7, 2026

Time: 10:00 AM or no later than three hours thereafter

Place: Inside the El Paso County Coliseum, 4100 E. Paisano, El Paso Texas 79905, or as otherwise designated by the El Paso County Commissioners Court

Property to be Sold: The Property in the deed of trust referenced above

Terms of Sale: The Trustee, or any Substitute Trustee the Lender may appoint, will offer the Property for sale "AS IS" at public auction at the Place of Sale, to the highest cash bidder, with the exception of the Lender, who will be allowed to bid credit against the amount owed under the obligation secured by the lien in the Deed of Trust. The sale will begin at the 10:00 a.m. or not later than three hours thereafter.

Pursuant to Section 51.009 of the Texas Property Code, the property will be sold in "as is, where is" condition, without any express or implied warranties, except as to the warranties of title (if any) provided for under the deed of trust.

The highest bidder will be required to remit payment immediately following the close of the auction or within 2 hours by certified funds (i.e., cash in U.S. currency or a cashier's check). No personal checks, business checks, or notes will be accepted. Bidders who do not have certified funds on their person at the conclusion of the auction or certified funds within 2 hours of the auction may not have their bid accepted. No oral modifications to this requirement for immediate payment following the conclusion of the auction shall occur.

If the highest bidder fails to produce the certified funds at the close of the auction or within 2 hours, the trustee will immediately resume the public auction at the Place of Sale and accept new bids.

Pursuant to Section 51.0075 of the Texas Property Code, the trustee or substitute trustee will establish conditions for the Foreclosure Sale as are deemed reasonable and in accordance with the Texas Property Code. Any conditions beyond what are listed in this document will be disclosed prior to the opening of bidding on the day of the Foreclosure sale.

ASSERT AND PROTECT YOUR RIGHTS AS A MEMBER OF THE ARMED FORCES OF THE UNITED STATES. IF YOU ARE OR YOUR SPOUSE IS SERVING ON ACTIVE MILITARY DUTY, INCLUDING ACTIVE MILITARY DUTY AS A MEMBER OF THE TEXAS NATIONAL GUARD OR THE NATIONAL GUARD OF ANOTHER STATE OR AS A MEMBER OF A RESERVE COMPONENT OF THE ARMED FORCES OF THE UNITED STATES, PLEASE SEND WRITTEN NOTICE OF THE ACTIVE MILITARY SERVICE TO THE SENDER OF THIS NOTICE IMMEDIATELY.

Dated: *March 10, 2020*

Briana Cooper

Briana Cooper, Trustee